

■ By Malini Bhupta and Jhilmil Motihar

Like any other young couple, Niketa and Haresh Mehta too were looking forward to the birth of their first child. Married for a year-and-a-half, the couple had taken steps to ensure that their unborn child got all the medical attention it needed.

On July 22, the young couple's dream came crashing down when their doctor told them that their unborn child has a congenital heart block coupled with a transposition of great vessels in which the aorta and pulmonary artery are malpositioned. Simply put, it means that the heart rate of the child will be less than the normal 72. In this case, the baby's heart rate is 55. In certain cases with this condition, the child might need a pacemaker right after birth.

Unable to comprehend its seriousness, Mehta, a stockbroker by profession, took his 31-year-old wife for a second opinion to Dr Nikhil Datar, a gynaecologist. Datar advised them to abort. However, since the anomaly came to the fore only in the 24th week of Niketa's pregnancy, an abortion under the Medical Termination of Pregnancy Act (MTP) 1971 would have been illegal. The Act has provisions for a termination up to the 20th week only if the mother's life is in danger. The Mehtas, along with Datar, who is also trained as a lawyer, decided to move the Bombay High Court and filed a petition challenging the MTP Act on July 24. Their plea: If medical experts opine that the child may be born with serious congenital defects, the parents should be allowed to abort the foetus even dur-

RIGHT TO LIVE

The Bombay High Court ruling against a couple's plea to abort their unborn child after the safe period prescribed by the law sparks off a major debate over the medical and social ethics involved in such decisions

ing the later stages of pregnancy.

However, on August 4, a Bombay High Court bench consisting of Justices R.M.S. Khandeparkar and Ahmed Sayyad ruled against the petition, as the expert panel of the JJ Hospital, Mumbai, formed after the court's intervention, could not definitely say that the child would be seriously handicapped on birth. The findings of the expert panel, comprising Dr Ashok Anand (gynaecologist), Dr N.O. Bansal (cardiologist) and Dr Neeta Sutay (pediatrician) from the JJ Hospital, show that the baby has a congenital heart block along with transposition of the great vessels. However, the bit about transposition of great vessels is strangely missing from the report submitted by the hospital to the high court. "The transposition of great vessels in the child poses no complications and that is the reason it has not been included in the report," justifies Dr B.M. Subnis, dean of the JJ Group of Hospitals.

The Mehtas have expressed doubt over the sanctity of the report because

of the gaffes made by the hospital. While the first report states "there are very fair chances that the child will be born incapacitated and handicapped to survive", the second claims that "there are very few chances that the child will be born incapacitated and handicapped to survive". Subnis, however, explains that the confusion arose because of a typographical error on the part of his steno and the hospital's findings haven't changed.

Specialists like Dr Devi Prasad Shetty of Bangalore-based Narayan Hrudayalaya, who has been sent Niketa's report by JJ Hospital, says: "It's absolutely no cause for concern. A child with this problem can definitely survive and lead a normal life. There are very few cardiac problems which cannot be treated today. Most children with this anomaly would not require a pacemaker but in any case the couple should have a cardiac specialist during birth." However, for the Mehtas, such assurances provided little comfort.

Medical experts who have seen

WHAT THE LAW STATES IN INDIA

Provisions in the Medical Termination of Pregnancy (MTP) Act, 1971 state that abortions are permitted up to the 12th week of pregnancy. Between the 12th and the 20th week, an abortion can be permitted with the consent of two doctors only if giving birth will endanger the mother. A doctor who carries out an abortion beyond the 20th week, that also involves a fatal risk to the mother, faces imprisonment of up to seven years.

...AND IN OTHER COUNTRIES

THE US: Abortion is currently legal but most states have passed laws restricting late-term abortions.

THE UK: Abortion is allowed till the 24th week if there is a risk that the child may suffer serious handicaps.

CHINA: One-child China has a forced abortion policy. For a second child, parents apply for permission. Parents with two children are sterilised and a third pregnancy is forcibly terminated.

